IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE, PUNE

(Presided over by Shri A. B. Deshmukh, Additional Sessions Judge)

Criminal Bail Application No. 1234 of 2026

(in Sessions Case No. 318 of 2024, arising out of C.R. No. 210 of 2024 of Yerawada Police Station)

Applicant (undertrial prisoner, UTP No. 2024/1187) versus The State of Maharashtra

Shri P. R. Joshi, Legal Aid Defence Counsel, for the applicant.
Smt. S. K. Nair, Additional Public Prosecutor, for the State.

ORDER (dated 20th October 2026)

1. This is an application under Section 479 of the Bharatiya Nagarik Suraksha Sanhita, 2023 for release of the applicant, who is facing trial for offences punishable under Sections 379 and 411 read with Section 34 of the Indian Penal Code. The applicant was arrested on 14th March 2024 and has been in judicial custody since that date.

2. It is not disputed by the learned Additional Public Prosecutor that the applicant has no previous conviction and that no other case is pending against him. The maximum punishment prescribed for the offence under Section 379 of the Indian Penal Code is imprisonment of either description for a term which may extend to three years, and the same is the position under Section 411.

3. The report of the Superintendent, Yerawada Central Prison, dated 1st October 2026 shows that the applicant has undergone detention for a period of two years, six months and seventeen days as on that date, which exceeds one-third, and indeed one-half, of the maximum period of imprisonment specified for the offences.

4. In view of the first proviso to sub-section (1) of Section 479 of the Sanhita, and the directions of the Hon'ble Supreme Court in *In Re: Inhuman Conditions in 1382 Prisons*, the applicant, being a first-time offender who has undergone detention for more than one-third of the maximum period of imprisonment, is entitled to be released on bond.

ORDER

(i) The application is allowed. The applicant shall be released on his executing a personal bond of Rs. 15,000/- (Rupees fifteen thousand only), without sureties, to the satisfaction of the learned trial court.

(ii) The applicant shall attend the trial court on every date of hearing and shall not leave the jurisdiction of the Pune Police Commissionerate without the permission of the trial court.

(iii) The application stands disposed of accordingly.

Pune
20th October 2026

(A. B. Deshmukh)
Additional Sessions Judge, Pune